

LEASE

This Lease is made effective as of July 1, 2024 by and between **Blended Investments LLC** ("**Landlord**") and **TDINDUSTRIES, INC.**, 13850 Diplomat Drive, Dallas, Texas 75234, a Texas corporation ("**Tenant**").

In consideration of the mutual covenants set forth herein, Landlord and Tenant hereby agree as follows:

WITNESSETH:

1. **LEASE:** Landlord hereby leases to Tenant the industrial building location known as 4342 Burl Harris Drive, Abilene, Texas 79602 and more particularly described as follows: Industrial Trade Center, Block A, Lot 301 Rep, Acres 0.596, City of Abilene, Taylor County, Texas according to Plat recorded in the Taylor County Plat Records at Cabinet 4, Slide 2. (the "**Property**").

2. **A. SECURITY DEPOSIT:** A \$2,000 deposit was received by Landlord on June 10, 2021. This deposit shall be held by Landlord without liability for interest, as security for the faithful performance by Tenant of the terms, agreements, and conditions of this Lease.

In the event of Tenant's failure to keep and perform any of the terms, conditions and agreements of this Lease, then Landlord, at its option may, after Tenant fails to cure a default under Section 14 of this Lease, appropriate and apply the entire security deposit or so much of the security deposit as may be necessary to compensate Landlord for any loss or damage sustained or suffered because of this breach or default on the part of Tenant. Should Tenant comply with all of the said terms, conditions and agreements and promptly pay all of the rental provided for herein as such falls due and pay all of the other sums payable to Landlord under this Lease, this deposit shall be returned to Tenant within thirty (30) days following the termination of this Lease.

2. **B. TERM:** The term of this Lease commences July 1, 2024 and terminates on June 30, 2027 (the "**Original Term**") Tenant may extend this Lease for an additional term of three (3) years by giving written notice to Landlord at least thirty (30) days before the last day of the Original Term of the Lease (the "**Extended Term**"). The same terms and conditions of this Lease shall apply during the Extended Term except for the monthly rental rate which will be adjusted to the prevailing market rate at the end of this lease. (The Original Term and if this Lease is extended, Extended Term are collectively referred to below as the "**Term**", *with exception of adjusting monthly rental rate*).

3. **RENTAL:** Tenant agrees to pay Landlord a lease payment of \$2,500.00 per month for each month during the Term of this Lease, (the "**Rent**") payable in advance without demand on the first day of each month of the Term hereof, but such payment shall not be considered past due if paid on or before the fifth (5th) day of each month. If the monthly rental is not paid by the 5th day of the month, then a \$25.00 late fee will be assessed on the 6th day of the month, and a fee of \$10.00 for each day thereafter that the monthly rent is not paid. In the event this Lease terminates before the last day of a month, Landlord shall refund to Tenant a pro rata portion of the Rent paid for that month (based upon the monthly rental paid being considered daily rental for that month).

4. **UTILITIES:** Tenant shall pay all utility connections, deposits and charges.
5. **USE OF PROPERTY:** Tenant may use the Property for industrial warehousing of materials and equipment for the operation of Tenant's business. Tenant shall not sublease all or any part of the leased premises without Landlord's consent. Landlord shall not interfere with Tenant's use of the Property as long as Tenant is not in default.
6. **CONDITION OF PROPERTY:** Tenant accepts the Property in its present condition and state of repair, but within 30 days from the commencement of the Original Term of the Lease, Landlord shall make all repairs and improvements that are specified on **Exhibit "A"** which is attached hereto and incorporated herein by reference. Landlord shall maintain the roof, foundation and structural soundness of the exterior walls, excluding windows, store front and doors. Tenant shall be responsible to maintain the windows, store front and doors. Further, Tenant shall be responsible to maintain the signage on the Property and for lawn care on the Property. If this Lease is terminated prior to closing, Tenant shall surrender possession of the Property to Landlord in its present condition, as improved by Landlord, except normal wear and tear and any casualty loss. Landlord shall be notified immediately of any significant damage to the building due to fire, wind, water, etc. Furthermore, Landlord must be notified immediately of any significant damage due to accident or neglect. Tenant shall be responsible for all lawn mowing and weed control on the property. No materials shall be stacked or allowed to touch the chain link security fencing or gates.
7. **ALTERATIONS:** Tenant may not install permanent improvements or fixtures without the prior written consent of Landlord. Any permanent improvements placed on the Property during the Lease will become a part of the Property. Any expense to remove undesirable improvements to the Property made by the Tenant, shall be removed at the Tenant's expense.
8. **LAWS:** Landlord and Tenant shall comply with all applicable laws, restrictions, ordinances, rules and regulations with respect to the Property and this Lease.
9. **REPAIRS AND MAINTENANCE:** Except for Tenant's repair responsibilities set forth in Section 6 and the last sentence of this Section, Landlord shall bear all expense of repairing, replacing and maintaining the Property during the term of this Lease. If Landlord fails to make any repairs or replacement required hereunder within ten (10) days after the occurrence of such damage or injury, Tenant may, at its option, make such repairs or replacement, and the cost of such repairs or replacement shall be paid to Tenant by Landlord. Tenant shall repair at Tenant's expense any damage to the Property caused directly by an act or omission of Tenant.
10. **INSURANCE:** Landlord shall maintain and carry insurance covering the Property in an amount no less than the full replacement value of the Property and commercial general liability insurance on an occurrence basis covering Landlord's operations on the Property and having limits of not less than \$1,000,000 for each occurrence and \$2,000,000 aggregate. Said commercial general liability insurance policies shall contain a waiver of subrogation clause in favor of the other party. Tenant shall provide and maintain in force property damage insurance covering Tenant's personal property located within the Property and commercial general liability insurance on an occurrence basis covering Tenant's operations on the Property and having limits of not less than \$1,000,000 for each occurrence and \$2,000,000 aggregate. Landlord shall be listed as an additional insured on Tenant's policy or policies of comprehensive general liability insurance, and

Tenant shall provide Landlord with current Certificates of Insurance, evidencing Tenant's compliance with this paragraph. Tenant shall obtain the agreement of Tenant's insurers to notify Landlord that a policy is due to expire at least ten (10) days prior to such expiration. Landlord shall not be required to maintain insurance against thefts within the leased premises or the Building.

11. TAXES: Landlord shall pay all real property taxes assessed against the Property as such taxes become due. Tenant shall pay all personal property taxes in connection with the contents within the Property as such taxes become due.

12. CASUALTY: If the Property is damaged by casualty and can be restored within ninety (90) days, Landlord will, at its expense, restore the Property to substantially the same condition that existed before the casualty. If Landlord fails to complete the portion of the restoration for which Landlord is responsible within ninety (90) days from the date of written notification by Tenant to Landlord of the casualty, Tenant may restore the Property and Landlord shall be responsible for the expenses that Tenant incurs in the restoration or, alternatively, Tenant may terminate this Lease by written notice delivered to Landlord. If Landlord cannot complete the restoration referred to above within ninety (90) days, Landlord has an option to restore the Property. If Landlord chooses not to restore, this Lease will terminate. If Landlord chooses to restore, Landlord will notify Tenant in writing of the estimated time to restore and give Tenant an option to terminate this Lease by notifying Landlord in writing within thirty (30) days from receipt of Landlord's estimate. If Tenant does not notify Landlord of Tenant's election to terminate this Lease, the Lease will continue and Landlord will restore the premises. To the extent the Property is untenable after casualty, Rent will be adjusted as may be fair and reasonable.

13. CONDEMNATION: If the Property cannot be used for the purposes contemplated by this Lease because of condemnation or purchase in lieu of condemnation, this Lease will terminate. If there is a condemnation or purchase in lieu of condemnation and this Lease is not terminated, Landlord will, at Landlord's expense, restore the Property, and the Rent payable during the unexpired portion of the Term will be adjusted as may be fair and reasonable.

14. DEFAULT: If Tenant fails to perform or observe any material provision of this Lease and fails, within thirty (30) days after receipt of written notice by Landlord, to remedy such failure, Tenant will be in default. If Landlord fails to perform or observe any material provision of this Lease and fails, within thirty (30) days after receipt of written notice by Tenant, to remedy such failure, Landlord will be in default. After default and the failure of the defaulting party to cure the default within said thirty (30) day time period, the non-defaulting party may terminate this Lease.

15. TERMINATION: This Lease terminates upon the earlier of (a) the end of the Original Term, unless extended by Tenant, in which case, this Lease will terminate at the end of the Extended Term; (b) a termination of this Lease as otherwise provided herein; or (c) the mutual agreement of Landlord and Tenant. Upon termination, Tenant shall surrender possession of the Property.

16. HOLDING OVER: Any possession by Tenant after termination, other than by closing and funding of the sale of the Property to Tenant, creates a tenancy at sufferance and will not operate to renew or extend this Lease. Tenant shall pay \$75.00 per day during the period of any possession after termination as damages.

17. ATTORNEY'S FEES: The prevailing party in any legal proceeding brought under or with respect to this Lease is entitled to recover from the non-prevailing party all costs of such proceeding and reasonable attorney's fees.

18. DEFINITIONS: Capitalized terms used and not defined herein have the respective meanings as ascribed to them in the Contract.

19. NOTICES: All notices from one party to the other must be in writing and are effective when mailed to, hand-delivered at, or transmitted by facsimile or electronic transmission as follows:

Landlord: Blended Investments LLC
Attn: Michael L. Thompson
2066 Benz Drive
Abilene, Texas 79602

Tenant: TD INDUSTRIES, INC.
13850 Diplomat Drive
Dallas, Texas 75234

20. BINDING EFFECT: The provisions of this Lease shall bind the parties hereto and shall inure to the benefit of the parties and their respective legal representatives, heirs, successors, and assigns.

21. PERFORMANCE: Landlord and Tenant agree that this Lease and the obligations and agreements hereunder are performable in Taylor County, Texas.

22. JURISDICTION AND VENUE: Landlord and Tenant submit to the exclusive jurisdiction of, and venue in, the courts located in Taylor County, Texas for any dispute arising under this Lease.

23. RIGHT TO ENTER PREMISES: Landlord shall have the right to enter the leased premises at reasonable hours to inspect the same.

24. GOVERNING LAW: This Lease is governed by and is to be interpreted and enforced in accordance with the laws of the State of Texas, without giving effect to any choice of law or conflict of laws rules or provisions.

25. COUNTERPARTS: This Lease may be executed in any number of counterparts and by the different parties hereto in separate counterparts, each of which when so executed shall be deemed to be an original and all of which taken together shall constitute one and the same agreement.

26. MEMORANDUM OF LEASE: Tenant may record a summary of this Lease in the Official Public Records of Taylor County, Texas.

IN WITNESS WHEREOF, the parties hereto have caused this Lease to be executed as of the date first set forth above.

Landlord:

Blended Investments LLC
a Texas limited liability company

Michael L. Thompson 5-31-24
By: Michael L. Thompson, Member Date

Phyllis S. Thompson 5-31-24
By: Phyllis S. Thompson, Member Date

Tenant:

TDINDUSTRIES, INC.
a Texas corporation

DocuSigned by:
Jeff Sherman
By: 86300000DFC0647C

5/31/2024
Date

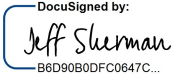
Exhibit “A”

[Landlord Required Repairs and Improvements]

NONE

Certificate Of Completion		
Envelope Id: 26014BFD799A4FD6B3D06BC7AD4C71C4		Status: Completed
Subject: Complete with DocuSign: 5-29 LEASETDINDUSTRIES070120241.docx		
Source Envelope:		
Document Pages: 6	Signatures: 1	Envelope Originator:
Certificate Pages: 4	Initials: 0	Diana Sandoval
AutoNav: Enabled		13850 Diplomat Dr
Envelope Stamping: Enabled		Dallas, TX 75234-8812
Time Zone: (UTC-05:00) Eastern Time (US & Canada)		diana.sandoval@tdindustries.com
		IP Address: 216.40.11.5

Record Tracking		
Status: Original	Holder: Diana Sandoval	Location: DocuSign
5/31/2024 9:33:29 AM	diana.sandoval@tdindustries.com	

Signer Events	Signature	Timestamp
Jeff Sherman jeff.sherman@tdindustries.com Senior Vice President TDIndustries Security Level: Email, Account Authentication (None)	DocuSigned by:  B6D90B0DFC0647C... Signature Adoption: Pre-selected Style Using IP Address: 128.92.214.45 Signed using mobile	Sent: 5/31/2024 9:37:56 AM Viewed: 5/31/2024 10:24:14 AM Signed: 5/31/2024 10:24:38 AM
Electronic Record and Signature Disclosure: Accepted: 5/31/2024 10:24:14 AM ID: 46567f35-6d35-4865-bfa8-7d77f4a35685		

In Person Signer Events	Signature	Timestamp
Editor Delivery Events	Status	Timestamp
Agent Delivery Events	Status	Timestamp
Intermediary Delivery Events	Status	Timestamp
Certified Delivery Events	Status	Timestamp
Carbon Copy Events	Status	Timestamp
Witness Events	Signature	Timestamp
Notary Events	Signature	Timestamp
Envelope Summary Events	Status	Timestamps
Envelope Sent	Hashed/Encrypted	5/31/2024 9:37:56 AM
Certified Delivered	Security Checked	5/31/2024 10:24:14 AM
Signing Complete	Security Checked	5/31/2024 10:24:38 AM
Completed	Security Checked	5/31/2024 10:24:38 AM
Payment Events	Status	Timestamps
Electronic Record and Signature Disclosure		

ELECTRONIC RECORD AND SIGNATURE DISCLOSURE

From time to time, TDIndustries, Inc (we, us or Company) may be required by law to provide to you certain written notices or disclosures. Described below are the terms and conditions for providing to you such notices and disclosures electronically through the DocuSign system. Please read the information below carefully and thoroughly, and if you can access this information electronically to your satisfaction and agree to this Electronic Record and Signature Disclosure (ERSD), please confirm your agreement by selecting the check-box next to 'I agree to use electronic records and signatures' before clicking 'CONTINUE' within the DocuSign system.

Getting paper copies

At any time, you may request from us a paper copy of any record provided or made available electronically to you by us. You will have the ability to download and print documents we send to you through the DocuSign system during and immediately after the signing session and, if you elect to create a DocuSign account, you may access the documents for a limited period of time (usually 30 days) after such documents are first sent to you. After such time, if you wish for us to send you paper copies of any such documents from our office to you, you will be charged a \$0.00 per-page fee. You may request delivery of such paper copies from us by following the procedure described below.

Withdrawing your consent

If you decide to receive notices and disclosures from us electronically, you may at any time change your mind and tell us that thereafter you want to receive required notices and disclosures only in paper format. How you must inform us of your decision to receive future notices and disclosure in paper format and withdraw your consent to receive notices and disclosures electronically is described below.

Consequences of changing your mind

If you elect to receive required notices and disclosures only in paper format, it will slow the speed at which we can complete certain steps in transactions with you and delivering services to you because we will need first to send the required notices or disclosures to you in paper format, and then wait until we receive back from you your acknowledgment of your receipt of such paper notices or disclosures. Further, you will no longer be able to use the DocuSign system to receive required notices and consents electronically from us or to sign electronically documents from us.

All notices and disclosures will be sent to you electronically

Unless you tell us otherwise in accordance with the procedures described herein, we will provide electronically to you through the DocuSign system all required notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to you during the course of our relationship with you. To reduce the chance of you inadvertently not receiving any notice or disclosure, we prefer to provide all of the required notices and disclosures to you by the same method and to the same address that you have given us. Thus, you can receive all the disclosures and notices electronically or in paper format through the paper mail delivery system. If you do not agree with this process, please let us know as described below. Please also see the paragraph immediately above that describes the consequences of your electing not to receive delivery of the notices and disclosures electronically from us.

How to contact TDIndustries, Inc:

You may contact us to let us know of your changes as to how we may contact you electronically, to request paper copies of certain information from us, and to withdraw your prior consent to receive notices and disclosures electronically as follows:

To contact us by email send messages to: valerie.thomas@tdindustries.com

To advise TDIndustries, Inc of your new email address

To let us know of a change in your email address where we should send notices and disclosures electronically to you, you must send an email message to us at valerie.thomas@tdindustries.com and in the body of such request you must state: your previous email address, your new email address. We do not require any other information from you to change your email address.

If you created a DocuSign account, you may update it with your new email address through your account preferences.

To request paper copies from TDIndustries, Inc

To request delivery from us of paper copies of the notices and disclosures previously provided by us to you electronically, you must send us an email to valerie.thomas@tdindustries.com and in the body of such request you must state your email address, full name, mailing address, and telephone number. We will bill you for any fees at that time, if any.

To withdraw your consent with TDIndustries, Inc

To inform us that you no longer wish to receive future notices and disclosures in electronic format you may:

- i. decline to sign a document from within your signing session, and on the subsequent page, select the check-box indicating you wish to withdraw your consent, or you may;
- ii. send us an email to valerie.thomas@tdindustries.com and in the body of such request you must state your email, full name, mailing address, and telephone number. We do not need any other information from you to withdraw consent.. The consequences of your withdrawing consent for online documents will be that transactions may take a longer time to process..

Required hardware and software

The minimum system requirements for using the DocuSign system may change over time. The current system requirements are found here: <https://support.docusign.com/guides/signer-guide-signing-system-requirements>.

Acknowledging your access and consent to receive and sign documents electronically

To confirm to us that you can access this information electronically, which will be similar to other electronic notices and disclosures that we will provide to you, please confirm that you have read this ERSD, and (i) that you are able to print on paper or electronically save this ERSD for your future reference and access; or (ii) that you are able to email this ERSD to an email address where you will be able to print on paper or save it for your future reference and access. Further, if you consent to receiving notices and disclosures exclusively in electronic format as described herein, then select the check-box next to 'I agree to use electronic records and signatures' before clicking 'CONTINUE' within the DocuSign system.

By selecting the check-box next to 'I agree to use electronic records and signatures', you confirm that:

- You can access and read this Electronic Record and Signature Disclosure; and
- You can print on paper this Electronic Record and Signature Disclosure, or save or send this Electronic Record and Disclosure to a location where you can print it, for future reference and access; and
- Until or unless you notify TDIndustries, Inc as described above, you consent to receive exclusively through electronic means all notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to you by TDIndustries, Inc during the course of your relationship with TDIndustries, Inc.